

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR AUGUST 20, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW
BY THE JUDGE

Unless the Court directs otherwise, appearances by counsel and parties in Department 38 may be made as follows:

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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1. **MSP21-01555 THE LORENZO S LOPEZ SPECIAL NEEDS TRUST**
9:00 AM HEARING IN RE: PETITION TO APPROVE FIRST ACCOUNT & REPORT OF TRUSTEE FROM 12-1-24
THROUGH 12-31-25. INCREASE BOND & TO APPROVE TRUSTEE'S & ATTY FEES FILED BY HEATHER
FISHER ON 4-24-26.

Petition Approved
Proposed Order Submitted
No Appearance Required

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2A.	P23-00184	MATTER OF: THE ANTONIO ANDRADE, JR. AND LINDA J. ANDRADE REVOCABLE LIVING TRUST
9:00 AM	HEARING IN RE: PETITION FOR ORDER TO INVALIDATE SIXTH, SEVENTH, AMENDMENT TO TRUST, FINANCIAL ELDER ABUSE, ACCOUNTING, REMOVAL OF TRUSTEE & INJUNCTION FILED ON 01/31/23 BY KAREN HERNANDEZ AND DEBORAH JOHNSON	
Need:		
1. Appearances to report status, including discovery and mediation 2. Proposed Order		
Notes:		
a. "Lauren Andrade, Trustee's Response and Objection..." filed 11-29-2023. b. Order (1) Suspending Lauren Andrade as Trustee and (2) Appointing Temporary Trustee filed 2-24-2025; Order appointed Deborah Johnson and Karen Hernandez as temporary successor trustees.		

2B.	P23-00184	MATTER OF: THE ANTONIO ANDRADE, JR. AND LINDA J. ANDRADE REVOCABLE LIVING TRUST
9:00 AM	HEARING IN RE: OSC FOR ATTORNEY JAMES FICENEC	
Need appearances by James Ficenec		
Notes:		
Substitution of Attorney James Ficenec filed by Lauren Andrade 8/11/2026. New counsel is Mark Krasner.		

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4. 9:00 AM	P23-00438 ESTATE OF: CHARLES FRENCH HEARING IN RE: FIRST & FINAL REPORT & ACCOUNT OF ADMINISTRATOR; PETITION FOR ITS SETTLEMENT; FOR STATUTORY COMPENSATION TO ADMINISTRATOR; & ATTY; FOR REIMBURSEMENT OF ATTY COSTS & FINAL DISTRIBUTION FILED BY KRISTINA COLEY ON 4-21-26.
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Need:

1. Appearances
2. Proposed Order

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5A. P23-01804 ESTATE OF: PATRICIA CANSON

9:00 AM HEARING IN RE: PROBATE OF WILL FILED ON 10/10/2023 BY STEVEN SMITH

-- See also Lines # 7 and 13 --

Need appearances to report status, including mediation

Notes:

- a) Will Contest filed by Aurin Canson 02/29/2024?
- b) Respondent Steven A. Smith's Answer filed 10/01/24.

5B. P23-01804 ESTATE OF: PATRICIA CANSON

9:00 AM HEARING IN RE: MOTION TO CONOLIDATE COORDINATED PROBATE MATTERS: P-231804; P23-01818; P24-00346; P24-2188

Need:

- 1. Appearances
- 2. Proof of mailing to all persons entitled to notice
- 3. Proposed Order

Notes:

- a. Motion to Dismiss for Lack of Standing filed by Steven A. Smith 01/02/26, set 09/10/26.
- b. Motion for Order to Strike and/or For Order Granting Summary Adjudication to Dismiss Iwuchukwu's Opposition filed by Steven A. Smith is set for hearing 10-15-2026.
- c. Motion for Sanctions filed by Steven A. Smith is set for 11-12-2026.

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7A. 9:00 AM	P24-00990 HEARING IN RE: PETITION FOR ORDER CONFIRMING TRUST AND TRUST ASSETS FILED BY STEVEN SMITH ON 6-7-24.	MATTER OF: PATRICIA BYRD CANSON LIVING TRUST, DATED AUGUST 13, 2023 -- See also Lines # 5 and 13 -- Need appearances Notes: a. Objection filed by Aurin M.K. Canson 10/24/24 b. Objection filed by Trustee Donald Iwuchukwu 10-29-2024.
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7B. 9:00 AM	P24-00990 HEARING IN RE: ORDER TO SHOW CAUSE FOR ATTORNEY METU OGIKE AND ATTORNEY CHRISTIAN ANYIAM FOR THEIR FAILURE TO APPEAR ON 6/18/26.	MATTER OF: PATRICIA BYRD CANSON LIVING TRUST, DATED AUGUST 13, 2023 Need appearances by Attorney Metu Ogike and Attorney Christian Anyiam to show cause why they should not be sanctioned for their failure to appear at the hearing 6/18/2026. The Court will consider sanctions of up to \$1,500.00, pursuant to CCP § 177.5 for failure to appear 6/18/2026, as ordered.
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| 9.
9:00 AM | P24-01179 THE TERRY FOGLEMAN SETTLEMENT TRUST
HEARING IN RE: PETITION TO APPROVE FIRST ACCOUNT & REPORT OF TRUSTEE FROM 11-19-24 THROUGH 11-30-25. TO CONFIRM TRUSTEE'S FEES & TO APPROVE ATTY FEES FILED BY INSPIRE TRUST CO ON 4-22-26.

Need:
<ol style="list-style-type: none">1. Appearances2. Verified declaration by petitioner to include financial account statement(s) as required by PrC § 2620(c)(2) & CRC §§ 2.100 <i>et seq.</i> For the first accounting, bank statements should include a statement that shows the account balance immediately preceding the accounting and a statement that shows the account balance as of the closing of the first accounting. The current documents submitted do not account for the time period prior to 11/25/2024 which is a date after the first accounting period began. The current documents also do not account for the time period of 11/25/2025 through 11/30/2025, the latter of which is the official end of the accounting period.3. Revised accounting as to the GC-400 Summary of Account and Accounting Schedules attached as Exhibit "B". Both submitted are illegible as to titles and headings. |
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10.

9:00 AM

P24-01188 ESTATE OF: IRIS MONTGOMERY

HEARING IN RE: REPORT OF ADMINISTRATOR AND PETITION FOR FINAL DISTRIBUTION OF ESTATE
FILED BY TREG CONCORD OP CO DIRECTOR ON 2-12-26.

Need:

1. Appearances
2. Summary of Account that complies with PrC § 1061(b). Accounting must begin with values as reported in Inventory & Appraisal (\$88,769.12). PrC § 1061(a)(1). Amended Accounting filed 6-24-2026 begins \$88,768.93
3. Amended Accounting submitted verified pursuant to PrC § 1021. CCP § 2015.5. CRC 7.103. Petition must be verified and dated pursuant to CCP § 2015.5.

Note: Amended Accounting filed 6/24/2026 with updated Summary of Account and proof of service attached.

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11.	P24-01259	MATTER OF: TIMOTHY PEARSON TRUST DATED DECEMBER 13, 2019, RESTATED ON OCTOBER 24, 2023
9:00 AM	HEARING IN RE: MOTION TO COMPEL KELLY PEARSON'S FURTHER RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENTS FILED ON 4/27/26 BY MARISSA MUNOZ	
		<u>Drop.</u>
	Note: Court date vacated pursuant to 8-11-2026 minute order. Matter continued to 12/10/2026.	

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12.

9:00 AM

P24-01277

MATTER OF: THE JOHNSON REVOCABLE TRUST

HEARING IN RE: TO INVALIDATE TRUST FILED BY SIENNA DUNN ON ~~7/25/26~~ 07/25/2024

Need:

1. Appearances
2. 30 days personal service of petition and Notice of Hearing on Barbara Delos Santos because pleading in part is a civil action. Petition requests exemplary damages and elder abuse remedies.
3. Verified declaration by petitioner to clarify relationship of Joseph Crittle, Jr. listed on Proof of Service attached to Notice filed 7-31-2024 so court can determine whether he is a person entitled to receive notice. He is not listed at ¶ 83 as a person entitled to receive notice.
4. Proposed Order

Note: Court will dispense with further formal service on Keylan Dunn whose counsel Michael Pierson has appeared in this matter.

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13A.	P24-02188	MATTER OF: CALIFORNIA REVOCABLE LIVING TRUST OF PATRICIA BYRD CANSON, DATED FEBRUARY 28, 2017
9:00 AM	HEARING IN RE: MOTION FOR JUDGMENT ON THE PLEADINGS FILED ON 12/24/25 BY STEVEN SMITH	
		-- See also Lines # 5 and 7 --
	Need appearances	
	Note: Opposition filed by Donald Iwuchukwu 1-23-2026.	

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13B.	P24-02188	MATTER OF: CALIFORNIA REVOCABLE LIVING TRUST OF PATRICIA BYRD CANSON, DATED FEBRUARY 28, 2017
9:00 AM	HEARING IN RE: PETITION FOR ORDER DETERMINING EXISTENCE OF TRUST AND FOR ORDER DETERMINING TITLE TO PROPERTY FILED BY DONAL IWUCHUKWU ON 12/12/24 - COURT CONTINUED 5/26/26 HEARING TO 7/1/26.	
	Need: 1. Appearances 2. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice, except parties who have responded. PrC § 17203 3. Proposed Order	
	Notes: 1. Respondent Steven A. Smith's Answer/Opposition filed 12-17-2024. 2. Sheila Webb's Opposition filed 2-2-2026.	

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13C.	P24-02188	MATTER OF: CALIFORNIA REVOCABLE LIVING TRUST OF PATRICIA BYRD CANSON, DATED FEBRUARY 28, 2017
9:00 AM	HEARING IN RE: PETITION: (1) DETERME NON-EXISTENCE OF TRUST; OR (2) TERMINATION; (3) COMPEL ACCOUNTING; (4) COMPEL PRODUCTION OF INFORMATION AND DOCUMENTS; (5) REMOVE TRUSTEE AND (6) ATTORNEYS FEES AND SANCTIONS FILED BY SHEILA WEBB ON 12/31/25 - COURT CONTINUED 5/19/26 HEARING TO	
	Need: 1. Appearances 2. Verified declaration by petitioner to include current address of Sue Bochac or verified declaration by petitioner showing diligent efforts made to locate and serve her. CRC 7.52	
	Note: Opposition filed by Trustee Donald Iwuchukwu 2-2-2026.	

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13D.	P24-02188	MATTER OF: CALIFORNIA REVOCABLE LIVING TRUST OF PATRICIA BYRD CANSON, DATED FEBRUARY 28, 2017
9:00 AM	HEARING IN RE: NOTICE OF MOTION TO COMPEL COMPLETION OF DEPOSITION FILED ON 03/23/26 BY STEVEN A SMITH	
Need:		
1. Appearances 2. Amended Proposed Order to reflect requests in Reply Re Smith Motion to Compel		
Notes:		
1. Reply Re Smith Motion to Compel completion of Deposition of Donald Iwuchukwu filed on 8/14/2026. 2. Supplemental Declaration of Shona Armstrong in support of reply re Motion to Compel filed 8/14/2026.		

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17. P24-02220 MATTER OF: THE CAROL SHAVER 2002 TRUST DATED APRIL 10, 2002, AS AMENDED

9:00 AM HEARING IN RE: TRUSTEE JOE SHAVER'S PETITION FOR CONSTRUCTION OF TRUST AND DETERMINATION THAT JOE SHAVER IS THE SOLE TRUST BENEFICIARY FILED 12/02/2025.

Need appearances

Notes:

1. Per 4-28-2026 minute order, atty. Joshua Johnson appeared on behalf of Rebecca Allen, in objection. Court ordered written objections to be filed by 5-28-2026, or objections will be deemed waived.
2. Rebecca Allen's Objection to Trustee Joe Shaver's Petition for Construction of Trust filed 5/22/2026.

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18A. **P25-00879** **ESTATE OF: ADAM MUELA**
9:00 AM HEARING IN RE: PETITION FOR ALLOWANCE OF CREDITOR'S CLAIM FILED ON 4/27/26 BY WENDY SOUZA

Petitioner must do the following:

1. Appear at the hearing
2. Submit Amended Proposed Order to reflect the accurate current amount of lien to be paid.

18B. **P25-00879** **ESTATE OF: ADAM MUELA**
9:00 AM PETITION TO ENFORCE CREDITOR'S CLAIM; DETERMINE PROPERTY RIGHTS AND ORDER DIRECTING PAYMENT OF LIEN FILED BY WENDY SOUZA ON 4/13/2026

Petitioner still must do the following:

1. Appear at the hearing
2. File a verified declaration to list the names and addresses of all persons entitled to notice
3. Have a Notice of Hearing and copy of the Petition mailed to all persons entitled to notice, and file the completed Notice of hearing
4. Submit a Proposed Order

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18C.

9:00 AM

P25-00879

ESTATE OF: ADAM MUELA

NOTICE OF MOTION AND MOTION TO ENFORCE CREDITOR'S CLAIM FILED BY WENDY SOUZA ON
4/13/2026

Petitioner still must do the following:

1. Appear at the hearing
2. File a verified declaration to list the names and addresses of all persons entitled to notice
3. Submit a Proposed Order

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19A.	P25-02326	MATTER OF: THE VALERIA BELLE ANDERSON REVOCABLE LIVING TRUST DATED SEPTEMBER 19, 2021
9:00 AM	HEARING IN RE: PETITION FOR ORDER CONFIRMING TRANSFER OF TRUST ASSETS FILED 12/30/25 BY FRENCHCESCA ANNTIONETTE GARDNER AND KIMBERLY ALICIA GARDNER	
	Need appearances	
	Notes: 1. Trust does not include a schedule of assets. Trust at page 21 includes an Acknowledgment by notary from Virginia. Page 22 includes an Acknowledgment by a California notary. 2. Pour-Over Will at page 26 only has one witness. 3. Per 5-19-2026 minute order, Trayce Gardner appeared in objection. Court ordered written objections to be filed and served by 8-10-2026, or objections will be deemed waived. 4. Objection filed by Trayce Gardner 5-26-2026.	

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**19B. P25-02326 MATTER OF: THE VALERIA BELLE ANDERSON REVOCABLE LIVING TRUST DATED
SEPTEMBER 19, 2021**

9:00 AM HEARING IN RE: PETITION FOR REMOVAL OF TRUSTEE, ACCOUNTING OF TRUST ASSETS,
PRODUCTION OF MEDICAL RECORDS, PRODUCTION OF ESTATE PLANNING DOCUMENTS AND
APPOINTMENT OF NUETRAL PROFESSIONAL FIDUCIARY FILED ON 4/20/26 BY TRAYCE GARDNER

Petitioner, daughter, must still do the following:

1. Appear at hearing
2. Verify petition under penalty of perjury. PrC § 1021. CCP § 2015.5. CRC 7.103
3. Have a Judicial Council Form Notice of Hearing mailed to all persons entitled to receive notice, and file Proof of Service with the court. PrC § 17203
4. File a proposed Order

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21.	P24-00535	MATTER OF: LOWELL D. SEWELL AND ELLA M. SEWELL REVOCABLE LIVING TRUST, DATED MARCH 27, 2008, AS RESTATED JULY 13, 2016
1:30 PM	COURT TRIAL HEARING	
	Need appearances	